

Present:

Mr. Justice Md. Salim

CIVIL REVISION NO.1045 OF 2009.

Government of Bangladesh, represented by the deputy
commissioner, Gopalganj.

-----*Defendant No.1-Appellant-Petitioner.*

-VERSUS-

Nuruzzaman Mia and others

-----*Opposite Parties.*

Mr. Binoy Kumar Ghosh, A.A.G.

..... *For the Petitioner.*

Ms. Purabi Saha, Advocate

..... *For the Opposite Party Nos.1 and 2.*

Heard and Judgment on 25.05.2023.

This rule at the instance of the defendant-appellant-petitioner is directed against the judgment and decree dated 15.08.2002 passed by the Joint District Judge, 1st Court, Gopalganj in Title Appeal No.96 of 2001, dismissing the appeal in affirming the judgment and decree dated 16.05.2001 passed by the Senior Assistant Judge, Kotalipara, Gopalganj in Title Suit No.36 of 2000 decreeing the suit.

Facts relevant for disposal of the rule are that the opposite party, Nos.1 and 2 as plaintiffs, instituted Title Suit No.36 of 2000 for the declaration of title in the suit land and also the declaration that the record

of the scheduled land in Khas Khatian No.1 in the name of the government in the S.A. record prepared wrongly, illegally and not binding upon the plaintiffs, and contending that .02 acre of land in plot No.364 of R.S. Khatian No.174 under 29 No. Chhoto Dighalia Mouza belonged to Akshay Kumar Saha, who, before R.S. record, used to run a business in a shop over the suit land; Akshay Kumar sold the land to Khetra Mohan Saha and Monindra Nath Saha by a registered deed No. 768 dated 5.2.1952. They continued the business like their vendor. Subsequently, they sold the suit land by a registered Kabala No. 18 dated 2.1.1964 corresponding to 17 the Poush 1370 BS in favor of Ayub Ali Faraji, a resident of Dighalia, and continued the business like his vendor; that preliminary S.A. record prepared in the name of Khetra Mohan and Monindra, but they did not take any information about final publication of the Khatian; that due to enlistment of names in preliminary Khatian, they paid rent and obtained Dakhila; that Ayub Ali Faraji, the subsequent purchaser did not take information about the S.A. final record at the time of his purchase and following in 1966 for 6 point movement Auyb Ali did not pay any rent. After independence, the government remitted the tax up to 25 Bighas. As such, he did not inquire about the S.A. record and, while possessing in such position, sold the same by registered kabala No. 2016 dated 9.8.1984 in favor of the plaintiff. And used to run the business as before that of his vendor; that in the present survey, the suit land was recorded in the name of Ayub Ali Fraji; that the suit land in the name of East Pakistan Province represented by collector Faridpur was

recorded in S.A. Khatian No. 1 which had no basis; that in R.S. Khatian in the possession column, the suit land was marked as 'Chandina' if so, the same not be vested to the government as per law but in S.A. Khatian there was no mention of Chandiana in respect of Suit land; that on 27.03.2000 while plaintiff came to know about the wrong record and received threat from the Tahshilder to lease out elsewhere constrained to file the suit.

Defendant No.1 Government contested the suit by filing a written statement denying the plaintiff's title and possession in the suit land and contending inter-alia that the suit land is the Government Khas land as Hat-Bazar and accordingly recorded in Khas Khatian No. 1 and finally Published and also recorded as the periphery of hat; that the suit land as per rule of the government is suitable for lease on a yearly basis and being the periphery of Hat and Bhatti, the plaintiff has no right title, interest and possession over the same, that the plaintiffs alleged deed No. 768 dated 5.02.1952, deed No. 2016 dated 2.1.1964 were false and on 27.03.2000 or in any dated the Tahshilder did not ask the plaintiff to take the settlement of the land as such no cause of action arose. The suit is liable to be dismissed.

The Assistant Judge framed as many as six different issues. The plaintiff adduced 5 P.W.s and produced documentary evidence as Exhibit 1-5, and the defendant side adduced 1 D.W. and documentary evidence as Exhibit-'Ka'. Subsequently, the learned Senior Assistant Judge, Kotalipara, Gopalganj, on the conclusion of the trial by the judgment and decree dated 16.05.2001, decreed the suit on the contest.

Being aggrieved by and dissatisfied with the above judgment and decree, the defendant preferred Title Appeal No.96 of 2001 before District Judge Gopalganj. On transfer the appeal was heard by the Joint District Judge, 1st Court, Gopalganj. Consequently, The appeal was dismissed by the judgment and decree dated 15.08.2002 affirming those passed by the Assistant Judge.

Being aggrieved by and dissatisfied with the judgment and decree, the defendant-appellant-petitioner preferred the revision application before this court and obtained the instant rule.

Mr. Mr. Binoy Kumar Ghosh, the learned Assistant Attorney General appearing on behalf of the petitioner, submits that admittedly, the suit land is a government periphery and recorded as Khas Khatian No.1 as Hat; the appellate court as well as trial court below without discussing any evidence on record held title possession in favor of the plaintiff and decreed the suit; the suit is barred as per the provision under sub-rule 2a of section 20 of the State Acquisition and Tenancy Act.

On the other hand, Ms. Purabi Saha, learned counsel appearing on behalf of the plaintiff-opposite parties, submits that both the court below concurrently found that the plaintiffs have succeeded in proving their case and in the impugned judgment and decree there is no misreading or non-reading evidence of record. The plaintiffs have been able to prove their title and possession in the suit land, and both the courts below have not committed any error of law resulting in an error in the decision occasioning a failure of justice.

I have heard the learned counsel for both parties and considered their submissions. I have perused the judgment and decree passed by both the courts below, as well as evidence of witnesses and other material evidence on record.

The onus lies upon the plaintiffs to prove their settlement, title, and possession in the suit land. To prove their settlement, title, and possession, the plaintiffs have examined four(4) witnesses. Of them, P.W.1 Nazmul Islam admitted in the cross-examination that he has a shop in the suit land; after the burning of the shop they did not see Ayub Ali Faraji as the shopkeeper of the Bazar. He denied the suggestion that the suit land belongs to the periphery of Hat or deeds are void, fabricated and created. P.W.2 Ayob Ali Farazi admitted in the cross-examination that suit land belongs to the Hat; this land belongs to the Chandina Vita. P.W.3 Badsha Mia admitted in the cross-examination that suit land is the shop house; the plaintiff's shop is Chandina Vita. P.W.4 Md. Yakub Ali Khan admitted in the chief that he is a businessman of the market. In cross-examination he also admitted that suit land belongs to the government khas khatian No.1. Moreover, the plaintiffs failed to exhibit any kind of rent receipts or Dakhila to prove their respective possession in the suit land.

Further, from exhibit-1, the C.S. record manifests that the classification of the suit land is Chandina; exhibit-2 that the S.A. record of the suit land has been recorded as Khas Khatian No.1, i.e., the periphery of the hat and Exhibit-2ka the R.S record of the suit land has also been

recorded as Khas Khatian No.1. On the other hand, D.W.1 deposed that the R.S. record of the land in question remained in the name of the East Pakistan Province represented by the collector, Faridpur, in Khas Khatian No.1 and finally published as the periphery of hat; chandina means the land belongs to Hat-Bazar. Nevertheless, it is admitted that the suit land belongs to the Khas Khatian No.1, i.e., the periphery of the hat.

In view of the above, I am of the view that plaintiffs have failed to prove their land settlement and have failed to prove their title and possession of the suit land and the plaintiffs' case is barred by law as per the provision so enumerated in sub-section (2a) of section 20 of the State Acquisition and Tenancy Act 1950. This view gets support from the case of the Province of East Pakistan Vs Md. Shahabuddin Gazi and others reported in 25 DLR(AD) 248 held that—

After the retrospective amendment made by Ordinance No. XII of 1960 in section 20 of the Act by the incorporation therein of sub-section (2a), which had the effect of excluding hats and bazars from the category of returnable lands from the very beginning, the hats and bazars in the khas possession of the rent-receiver became vested in the government from the date of the notification in 1956 under sub-section 2 of section 3 of the Act. But so far as raiyats, agricultural tenants, and other tenants were concerned, the vesting took place after the preparation and final publication of the compensation assessment roll and its notification by virtue of subsection (3) of section 44 of the Act.

A similar view has been taken in 9 DLR(HCD) 569. On the above facts, circumstances of the case, and discussions made herein above, I am of the firm view that the learned Joint District Judge, 1st Court, Gopalganj, did not correctly appreciate and construe the documents and materials on record in accordance with the law in affirming the judgment and decree of the trial court. Therefore, the impugned judgment and decree dated 15.08.2002 passed by the learned Joint District Judge, 1st Court, Gopalganj, in affirming the judgment and decree dated 16.05.2001 passed by the learned Senior Assistant Judge, Kotalipara, Gopalganj suffers from legal infirmity and perversity, and as such, the same is liable to be set aside.

As a result, the rule is made absolutely without any order regarding costs.

The judgment and decree dated 15.08.2002 passed by the learned Joint District Judge, 1st Court, Gopalganj, in Title Appeal No.96 of 2001 dismissing the appeal in affirming the judgment and decree dated 16.05.2001 passed by the learned Senior Assistant Judge, Kotalipara, Gopalganj in Title Suit No.36 of 2000 is hereby set aside.

Let the Lower Court Records be sent down with required copies of the judgment at once.

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(Md. Salim, J).